

Court No. - 21

Case :- WRIT - C No. - 6503 of 2024

Petitioner :- Bhola Nath Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Atul Kumar Yadav, Sanjeeva Kumar Yadava

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for the respondent-Electricity Department seeks time to obtain instructions.

2. Put up as fresh on 15.03.2024.

Order Date :- 28.2.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Counsel for Petitioner :- Atul Kumar Yadav, Sanjeeva Kumar
Yadava

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Shri S.K. Pandey, counsel for the Electricity Department seeks further time to complete his instruction.
2. We direct the Executive Engineer concerned to file personal affidavit positively by next date bringing the entire facts on record.
3. List as fresh on 2 April 2024.
4. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

Order Date :- 15.3.2024

Mukesh Kr.

(Kshitij Shailendra, J.)

(Manoj Kumar Gupta, J.)

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Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Respondent No. 4 has filed his personal affidavit in compliance of the previous order. The stand taken therein is that by mistake the subsidy amount was also included in the bill but now the said mistake has been corrected and the bill has been amended.

2. Counsel for the petitioner seeks time to complete his instruction.

3. Put up as fresh on 15 April 2024.

Order Date :- 2.4.2024

Mukesh Kr.

(Kshitij Shailendra, J.)

(Manoj Kumar Gupta, J.)

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Petitioner :- Bhola Nath Yadav

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Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner was served with a notice dated 26.10.2023 passed by respondent No. 4 mentioning that his request for permanent disconnection of the electricity supply would be accepted only upon payment of rupees one lakh nine thousand two hundred seventeen, the balance towards electricity charges.

2. In the personal affidavit filed by respondent No. 4 in compliance of previous order of this Court, it is stated that the respondent while issuing final bill had not deducted the subsidy amount. The said mistake has now been corrected and the petitioner is only required to pay rupees eighty eight thousand one hundred seventy five for getting his supply disconnected on permanent basis.

3. Counsel for the petitioner is disputing the correctness of the aforesaid bill.

4. The petitioner has remedy to dispute the correctness of the final bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and therefore, we find no good ground to interfere in exercise of writ jurisdiction.

5. It is left open to the petitioner to avail the remedy provided under the Code, if so advised.

6. The writ petition stands disposed of, accordingly.

Order Date :- 15.4.2024

Mukesh Kr.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)